



LEISURE TOUR PACKAGE CONTRACT

Today, 3 February 2020 - the Parties herewith:

PARTY A: MIA RESORT NHA TRANG

Address: Bai Dong, Cam Hai Dong, Cam Lam, Khanh Hoa, Vietnam.
 Tel: (84) 258 3 989 666
 Fax: (84) 258 3 989 671
 Tax code: 4200525107
 Represented by: **Mr. BRUNO CIPRIANI** Title: **General Manager**

PARTY B:

Address:
 Tel:
 Fax:
 Tax code:
 Represented by: Title:

Both Parties hereby agree on the following terms and conditions:

I. ROOM RATE: Valid: **1 March 2020 to 31 December 2020**

Room type	Normal periods 1 Mar – 29 Apr 2020 1 July – 31 Aug 2020 26 Sep – 4 Oct 2020	Peak periods 30 Apr – 2 May 2020 24 Dec 2020 – 31 Dec 2020 (Minimum 3 night stay)	Low periods 3 May – 30 Jun 2020 1 Sep – 25 Sep 2020 5 Oct – 23 Dec 2020
	VND per night		
Garden View Condos	4,490,000	5,430,000	3,820,000
Ocean View Condos	4,700,000	5,640,000	4,000,000
Family Condos (*)	6,970,000	7,900,000	5,920,000
Garden Villas	5,730,000	6,660,000	4,870,000
Beachfront Villas	7,430,000	8,360,000	6,320,000
Cliff Villas	7,430,000	8,360,000	6,320,000
Mia Suites	13,090,000	14,030,000	11,130,000
5-bedroom beachfront villa (Minimum 2 nights stay per booking)	26,610,000	30,450,000	22,240,000
Extra bed (Except 5-Bedroom villas)	1,000,000	1,000,000	1,000,000

- Rates are quoted in VND net, per room or villa, per night, for single and double occupancy and are non-commissionable.
- Room rates are inclusive of breakfast, services charge & applicable government and provincial taxes.
- (*) The twin room in family condo is suitable for 2 children under 12 years old. Should you wish to use the family condo for 4 adults or 2 adults + 2 children from 12 years old and above, there is a breakfast surcharge for 2 persons who share this twin room. Surcharge is VND 330,000 per person per night.
- Single/Double rooms with King size bed – Maximum room occupancy is 2 adults & 1 child under the age of 12, or 3 adults. Only one extra bed is allowed per room at **VND 1,000,000 (Except 5-bedroom villas)**
- All rooms are No Smoking rooms and a penalty cleaning fee of VND 2,000,000 is applicable if evidence of smoking is detected

Compulsory Dinner: to all room types is applicable on 31 December 2020 (New Year Eve)

- VND 2,700,000 per adult
- VND 1,100,000 per child from 6 to under 12 years old.
- Free of charge for children under 6.

PROMOTIONS: ONLY FOR STAY IN BELOW PERIODS:

- 1 March 2020 - 8 April 2020
- 17 April 2020 – 29 April 2020
- 3 May 2020 – 30 June 2020
- 1 September – 25 September 2020
- 5 October 2020 – 23 December 2020

- **Early booking discount**

- 10% off: For booking made from 30 days before arrival day

- **Long stay discount**

- 10% off: For minimum 3 consecutive nights staying

Condition:

- Early birds & long stay discounts are not combinable or combine with any other promotion
- Early birds & long stay discounts are not applicable for extra bed & breakfast surcharge

II. CONDITIONS OF AGREEMENT:

- No room charge for children under 12 years old when sharing existing bedding in room. Extra bed charge will apply otherwise. Children from 6 or under the age of 12, sharing a room with no extra bed will be charged an additional VND 330,000 per child per night for breakfast.
- These rates are negotiated based on the standard wholesaler/retailer distribution. At no time is it acceptable for these negotiated rates to be given directly to the consumer or sell to third party without 10% mark-ups at least. Should the guest pay by personal account, or extend their stay, regular rack rates will be applied to protect the confidentiality of our agreement.
- The resort reserves the right to change terms and conditions in the contract with prior notice.
- Check out time is 12:00 noon. Check in time is 14:00pm
- For a late check-out to 18:00pm, a 50% charge of applicable daily contract rate applies. For late check-outs after 18:00pm, one full night contract rate applies. Subject to availability.
- Guaranteed access to room prior to 14:00pm may be reserved from the previous evening with one night additional contract rate charge. All of these facilities are subject to availability.
- No Show & Early Check-out Policy: In the event that an individual or group does not arrive, or arrives later than the confirmed arrival date, or departs earlier than the confirmed departure date, the tour operator shall be held responsible for payment computed at the equivalent for the full originally booked length of stay.
- A final rooming list is to be submitted to the resort with arrival times and meal requirements of groups at least 7 days prior to arrival.
- Rates offered are applicable only if reservations are made directly with the resort by email or fax and which will be confirmed, and returned in writing by the resort.

FOR RESERVATIONS:

Tel: +84 258 3989666 Fax: +84 258 3989667

Email: reservations@mianhatrang.com; info2@mianhatrang.com

ADVERTISING IN THE INTERNET

These confidential rates offered to Travel Agent are not for use via the Internet for any form of direct selling. If your organization or company decides to promote MIA resort Nha Trang on the Internet, we must be notified in writing 30 days in advance to seek approval. Should these contract rates be used online selling, there must be a minimum mark up of 25% to the rates and the rates must be packaged with air tickets-tours and/or sightseeing arrangements. This is to ensure the nightly accommodation rates are not revealed to the public. If this is not adhered to, MIA resort reserves the right to withdraw the rates from Travel Agent without any prior notice.

III. PAYMENT**1/ Normal periods:**

Full payment must be settled a minimum of 7 days before clients' arrival at the resort.

2/ Low periods OR for long stay with 5 consecutive nights up

- 30% of total amount is to be paid into our bank account upon booking to reserve the rooms.
- Full payment must be settled at least 15 days prior to clients' arrival at the resort.

3/ Peak periods: During Christmas & New Year, Lunar New Year & public holidays mentioned above

- 30% of total amount is to be paid into our bank account upon booking to reserve the rooms.
- Full payment must be settled at least 45 days prior to clients' arrival at the resort.

Otherwise the resort will collect directly from the client at published rates. The Hotel reserves the right to release all rooms not guaranteed by payment of deposits within the time limit stated unless separate written arrangements have been agreed upon between the resort and the contracting party.

If the account has been granted a credit facility, payment must be settled within 30 days from receipt of the Resort's invoice. Failure to comply with this procedure may result in this contract being canceled.

The Hotel does not accept responsibility for the payment of bank charges of fees resulting from the transfer of money from your account to our bank. Any such fees or charges are the responsibility of the client/contracting party and cannot be deducted from payments.

- Payment by bank transfer will need to be made to the following bank details:

ACCOUNT NAME	:	CÔNG TY CỔ PHẦN PHÁT TRIỂN DU LỊCH CAM RANH (CAM RANH TOURISM DEVELOPMENT CORP)
BANK NAME	:	NGÂN HÀNG THƯƠNG MẠI CỔ PHẦN NGOẠI THƯƠNG VIỆT NAM – CHI NHÁNH KHANH HOA (VIETCOMBANK KHANH HOA)
ADDRESS	:	17 QUANG TRUNG – NHA TRANG- KHÁNH HÒA
SWIFT CODE	:	BFTVNVX006
ACCOUNT NUMBER	:	006 137 100 7059 (USD) 006 100 100 6429 (VND)
VAT code	:	4200 525 107

IV. CANCELLATION POLICY

Any notification of cancellation in writing must be effected to normal rooms (except 5 bedroom villa) on the following schedule:

1. Normal periods:

- Notify more than 7 days prior to arrival: no charge
- Notify within 7 – 4 days of arrival date: 01 first night's accommodation charge of whole booking
- Notify within 3 days of arrival date: 100% of total amount

2. Low periods OR for long stay with 5 consecutive nights up

- Notify within 21-15 days prior to arrival – 30% of total amount
- Notify within 14 -8 days prior to arrival – 50% of total amount
- Notify within 7 days prior to arrival – 100% of total amount

3. Peak periods:

- Notify within 45 days prior to arrival – 30% of total amount
- Notify within 30 days prior to arrival – 50% of total amount
- Notify within 20 days prior to arrival – 100% of total amount
- Reduction in the number of rooms or room nights against requested bookings blocks or early check out is considered as a cancellation.
- Postponement or changes of date against requested bookings will be considered as a cancellation.
- Pre-arranged meals in the resort restaurants and/or the resort meeting room: penalty fee for entire cancellation of meal is applicable for cancellations made within 3 days prior to meal starting time.

V. MISCELLANEOUS INFORMATION:

Please note that we have a limited inventory of extra beds, requests for an extra bed will be subject to availability. Please check with the resort before confirming extra beds with clients, including allotment rooms.

VI. SPECIFIC TERMS & CONDITIONS FOR THE FIVE BEDROOM VILLAS:

NOTES:

- **The resort requires a minimum stay of two (2) nights for all Five Bedroom Villa bookings**
- During public holidays and peak season: all confirmed bookings are non-amendable and non-refundable
- A security deposit of VND 12,000,000 (twelve million Vietnam Dong) will be held in cash or through credit card preauthorization upon check in & will be returned upon check out if no damage is sustained to the villa or villa content
- Room rates are quoted in VND net, per night inclusive of services charge, applicable government / provincial taxes and are non-commissionable
- Should you prefer to convert from VND to USD for any purpose, please use the daily exchange rate
- Maximum occupancy of whole five bedroom beach front villa is 10 adults
- NO extra beds are allowed in bedrooms, only sharing existing bedding in rooms

CHILD POLICY:

- Maximum is 4 children under 12 years old per villa. Children from 12 years old will be considered adults
- Children from 6 or under the age of 12, sharing existing bedding in bedrooms will be charged VND 330,000 nett per child per night for breakfast
- No extra bed will be provided, except the baby cot
- Every child must be registered upon check in

EXTRA PERSON:

- Outside guest will be charged VND 460,000 per person for daytime visiting and must depart no later than 9PM

ARRIVAL / DEPARTURE POLICY:

- Check-in time is 15:00pm and check-out time is 11:00am.
- Late check-out charge:
 - VND 1,050,000 per hour will be charged for late check-out from 11:00am - 14:00pm
 - VND 2,100,000 per hour will be charged for late check-out from 14:00pm – 16:00pm
 - VND 4,200,000 VND per hour will be charged for late check-out from 16:00pm – 18:00pm
 - Full contract rate will be charged for check-outs after 18:00pm
- Guaranteed access to room prior to 15:00pm may be reserved from the previous evening with one night additional contract rate charge. All of these facilities are subject to availability.
- No Show & Early Check-out Policy: In the event that an individual or group does not arrive, arrive later than the confirmed arrival date, or departs earlier than the confirmed departure date, the tour operator will be held responsible for payment computed at the equivalent for the full originally booked length of stay.

5 BEDROOM VILLA AMENITIES:

- Minibar
- Wifi
- Video on demand system
- Media Room
- Private infinity pool
- Indoor & Outdoor lounges
- BBQ Facilities

Housekeeping Service:

- Cleaning Service is provided once daily, excluding laundry service
- Turndown service is provided in the evening between 6pm – 9pm

Additional services provided upon request:

MAID SERVICE:

The management provides daily cleaning services for all villa properties. Laundry and ironing of personal clothes are charged. Rates are available upon request. Special treatment of personal laundry, cooking, or babysitting must be arranged in advance.

Additional maid service can be arranged with additional charge of VND 2,000,000 for full day (from 8am – 4pm) or VND 900,000 for 1 hour visit.

GROCERY DELIVERY AND A CHEF FOR VILLA:

The Resort provides private chef services at VND 2,540,000 per hour; waiters are VND 920,000 per hour. For grocery provisioning and all other such needs, please contact our restaurant.

Notification in advance is required for grocery shopping and private chef/waiter services.

LOUD, LATE PARTYING:

Partying in the villas is not allowed without prior permission given by resort management.

No excessive noise allowed after 9PM.

VILLA USAGE & DAMAGE:

Furniture, equipment and household items can not be moved from their original place. For any villa damages, replacement or maintenance costs will be fully charged to the guests' account upon their departure: breakage, damage, missing items, additional cleaning for villas left abnormally dirty, long-distance calls charged to the villa's telephone, any outstanding charges and utilities bills incurred during their stay.

The Guest agrees to ensure that their family and other guests in their party adhere to the rules and regulations affecting the rented villa. Rearranging the furniture or removing any items from the villa is prohibited.

Smoking within the villas is strictly prohibited; a penalty cleaning fee of VND 4,620,000 is applicable if evidence of smoking is detected.

PETS:

No pets of any kind are allowed in or around the villa. Damage and accidents occurred by pets or evidence of a pet found on premises will cause immediate eviction, and engage the responsibility of the guest.

PAYMENT:

1/ Normal periods & low periods:

- 30% of total amount to be paid into our bank account upon booking to reserve the Five bedroom beachfront villa.
- Full payment must be settled 30 days before clients' arrival to the resort.

2/ Peak periods: During Christmas & New Year, Lunar New Year & public holidays mentioned above

- 30% of total amount is to be paid into our bank account upon booking to reserve the rooms.
- Full payment must be settled at least 45 days prior to clients' arrival at the resort.

- The Hotel reserves the right to release Villas not guaranteed by payment of deposits within the time limit stated unless separate written arrangements have been agreed upon between the resort and the contracting party.
- Payment must be in cash, telegraphic transfer or by bank draft unless a separate written credit arrangement has been agreed by both contact parties. Payment by credit card is acceptable.

CANCELLATION POLICY

Any notification of cancellation in writing must be effected to the hotel on the following schedule:

1. Normal periods & low periods:

- Notify within 31 days prior to arrival – deposit is forfeited
- Notify within 21 days prior to arrival – 50% full length of stay
- Notify within 14 days prior to arrival – 100% of full length of stay

2. Peak periods:

- Notify within 45 days prior to arrival – 30% of total amount
- Notify within 30 days prior to arrival – 50% of total amount
- Notify within 20 days prior to arrival – 100% of total amount
- Reduction in the number of rooms or room nights against requested bookings blocks or early check out is considered as a cancellation.
- Postponement or changes of date against requested bookings will be considered as a cancellation.
- Organized meal in the resort restaurants and/or the resort meeting room: penalty fee for entire cancellation of meal is applicable for cancellation made within 72 hours prior to meal starting time.

VII. LITIGATION:

Any dispute or difference arising out of this agreement shall be settled by litigation before The Court Law of Vietnam. Vietnam law shall be the proper law of this agreement.

Only the signed agent of this contract is authorized to use the above-mentioned rates.

This offer is valid for 30 days from the date of issue. Kindly acknowledge your acceptance, including Terms and Conditions above, by signing and returning the attached duplicate copy of this agreement to our resort.

This Agreement is made in two (2) copies of equal legal value. Each party keeps one (1) copy.

On behalf of the Resort

On behalf of the Buyer

Name: Mr. Bruno Cipriani
Position: General Manager

Name:
Position:

This Rate Agreement must be signed, stamped and send back to us within 7 days.

Mrs. Nguyen Thi Phuong Anh – Reservation Manager

MIA RESORT NHA TRANG

Postal address : KHU ĐÔ THỊ HUD (KHU ĐÔ THỊ PHƯỚC LONG A), NHA TRANG CITY

Tel : 84 258 3 989 666 / Email : info1@mianhatrang.com